



File No.: EXP202310056

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection has become aware of certain facts that could violate data protection legislation. On July 18, 2023, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigative actions referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD) to investigate TYRCEO Data Solutions S.L. with NIF B16570236 (hereinafter, the investigated party) in relation to the following facts:

On July 17, 2023, the newspaper El Confidencial published a news article about the possible use by the Spanish Socialist Workers' Party of a technological tool that allows for the identification of specific segments of the population for electoral purposes (**URL.1), which has also been disseminated in other media such as ONDA CERO (**URL.2).

According to the published information, the Spanish Socialist Workers' Party would have acquired software called TESELA that would allow for the identification of potential voters to carry out a direct mailing of specific propaganda with the intention of mobilizing them for the electoral appointment on July 23.

In particular, the software called TESELA allows for directing electoral advertisements to extremely specific segments of the population by inputting the parameters of the profile to be contacted, from age to gender, including purchasing power, education level, and neighborhood of residence; subsequently, TESELA identifies individuals who match the predetermined data and then sends advertising campaigns through Facebook, Instagram, and other networks of the Meta group, using the chosen messages.

In this way, according to the news, TESELA allows for hyper-segmenting the recipients of the advertising and makes communication more effective, allocating 10 and 15-second videos on specific themes, which are complemented by traditional dynamic banners with campaign slogans and programmatic advertising.

In addition to TESELA, the aforementioned party would be using another application called BLOISE, already used in previous campaigns, through which Spain is divided into 37,000 portions, one for each electoral section, and studies the composition of each of those demarcations considering variables such as voting evolution, the percentage of retirees, income level, and the presence of immigrants, among other data.

The analysis of this information allows campaign managers to identify areas with the greatest potential for voter growth and, in combination with TESELA, would signify an even more precise way to allocate electoral propaganda.

Considering the relevance of the information, it is necessary for this Agency to gain an in-depth understanding of the described facts, particularly the operational parameters of the TESELA application and the treatments carried out to determine, if applicable, the consequences that may arise for the rights and freedoms of individuals.

In relation to the above, the need to assess the implications regarding personal data protection requires the opening of an investigation to verify these aspects and, if necessary, the proper observance of the regulations.

Therefore, in accordance with the aforementioned and in accordance with Article 67.2 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights, the Director of the Spanish Agency for Data Protection

IT IS AGREED to open an ex officio investigation and to instruct the General Subdirectorate for Data Inspection to initiate preliminary investigative actions aimed at verifying these facts and their authorship.

SECOND: The General Subdirectorate for Data Inspection on July 19, 2023, proceeded to carry out

preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects: From the Inspection Report, the following paragraphs are extracted (the term "inspected" in this context should be understood as referring to Tyrceo):

"In relation to the contracts made between the PSOE and the inspected party, the latter states the following:

- The inspected party has a framework contract with SANMARTÍN CONSULTORES DE COMUNICACIÓN SL (SANMARTÍN), which regulates the general conditions under which SANMARTÍN's clients may use TESELA. Furthermore, the framework contract specifies that the particular conditions of each project executed will be incorporated as annexes to it.

The "Framework Contract for the Provision of Services between TYRCEO Data Solutions SL and SANMARTÍN CONSULTORES DE COMUNICACIÓN SL," dated December 22, 2022, provided by the inspected party, is attached to the report as the first annex.

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The inspected party states that one of the annexes incorporated into the framework contract referred to in the previous point corresponds to the hiring of TESELA for use by the PSOE.

Attached to the record as the second annex is the "Annex to the Framework Contract for Service Provision dated December 22, 2022, between TYRCEO Data Solutions SL and SANMARTÍN CONSULTORES DE COMUNICACIÓN SL ('PSOE Project 2023')", dated December 22, 2022, provided by the inspected party.

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The inspected party indicates that it has signed a contract for the provision of digital advertising services with the PSOE.

Attached to the record as the third annex is the "FRAMEWORK CONTRACT FOR THE PROVISION OF DIGITAL ADVERTISING SERVICES BETWEEN THE SPANISH WORKERS' SOCIALIST PARTY (PSOE) AND TYRCEO DATA SOLUTIONS", dated January 31, 2023, provided by the inspected party.

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The inspected party states that, within the scope of the contract referred to in the previous point, no advertising campaigns have been carried out through the platforms of the Meta company (Facebook, Instagram, etc.).

Attached to the record as the fourth, fifth, and sixth annexes are the execution orders signed within the framework of the contract referred to in the previous point. All of them correspond to the month of July 2023.

Regarding the operation of the TESELA project to which the PSOE has access, the inspected party has shown and stated the following:

(...)

Additionally, during the Inspection, the details of the analyzed attributes are shown (see screenshots included in the Inspection Record). Regarding this particular matter, the following is observed:

(...)

Furthermore, the annexes referred to in the inspection and included in the record are as follows:

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First annex: "Framework Contract for Service Provision between TYRCEO Data Solutions SL and SANMARTÍN CONSULTORES DE COMUNICACIÓN SL", dated December 22, 2022. It includes the following paragraphs in its clauses:

"FIRST. Object

The purpose of this framework contract is to regulate the conditions under which the projects that

specify the commercial relationship between the parties will be governed, regulating the particular conditions of each of the aforementioned projects through successive annexes to this framework contract (the "Annexes").

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SECOND. Services and functionalities contracted

TYRCEO will provide its services through its technological platform TESELA or, where applicable, through the SONATA Platform, which is owned by Taptap Digital, SL., the parent company of TYRCEO (the "Services").

Tesela Platform Services

The Tesela Location Intelligence platform, referred to as "Tesela LI" or "TESELA" and available at www.teselaplatform.com, is a technological tool for geospatial intelligence that allows the provision of various data source analysis services that will be specified in the Annexes.

Sonata Platform Services

The Sonata Demand Side & Data Management Platform, referred to as "Sonata Adtech Platform", "Sonata Demand Side Platform", "Sonata DSP" or "SONATA", allows advertisers to activate digital audiences across multiple channels.

Its main features are as follows:

(...)

Sonata does not use data or data sources that may reveal ethnic or racial origin, political opinions, religious or philosophical beliefs, or union affiliation, nor does it process genetic data, health-related data, or data related to individuals' sexual orientation or life.

Notwithstanding the above, in the provision of advertising activation services carried out through SONATA, historical electoral results statistical data may be used to determine the geographical impact scope of advertising campaigns according to SANMARTÍN's indications, but TYRCEO will always and in all cases use neutral data profiles that do not denote any type of political ideology.

[...]

SEVENTH. Obligations of SANMARTÍN and restrictions on the use of the TESELA Platform

By signing this Contract, SANMARTÍN agrees to use the TESELA Platform according to these terms and conditions.

SANMARTÍN will be solely responsible for the use of the TESELA Platform, exempting TYRCEO from any liability arising from the use of the TESELA Platform by SANMARTÍN, the Users, or any eventual collaborator or dependent of the same, and even by any third party, authorized or not, for the use of the Platform.

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Neither SANMARTÍN nor the Users may use the TESELA Platform to participate in illegal, offensive, immoral, or inappropriate acts; nor to offer malware, illegal content, or to violate or infringe the rights of third parties; nor for dangerous, dishonest, or immoral purposes or services, or that incite any form of hatred, violence, or intolerance; nor for any purpose related to sexual content, or related to alcohol, gambling and betting, health, pharmaceuticals; nor for any purpose of religious or financial content. Political use purposes must strictly refer to the specific scope of each of the Annexes, and those that may have an illegal, offensive, inappropriate, immoral character, or that may otherwise be susceptible to causing reputational harm to TYRCEO are not permitted under any circumstances.

SANMARTÍN and the users shall not:

[...]

(xi) modify the results of the TESELA Platform or combine information related to different results or other Data Sources

[...]

SANMARTÍN is solely responsible for the content generated through the use of the TESELA Platform. In any case, SANMARTÍN agrees not to provide or use any information that may be false, misleading, defamatory, obscene, or that infringes the privacy or rights of any person; being SANMARTÍN the sole responsible for the outcome of the use of the TESELA Platform.”

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Second Annex: “Annex to the Framework Contract for the Provision of Services dated December 22, 2022, between TYRCEO Data Solutions SL and SANMARTÍN CONSULTORES DE COMUNICACIÓN SL (“PSOE Project 2023”)”, dated December 22, 2022. It includes the following information:

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A first form in which the contracted services (from the total available) are selected. It states the following:

(...)

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A second part of the wording of the clauses. It includes the following:

[...]

1. Subscription Period The subscription period will commence on the day of signing this annex and will end on 31/01/2024.

[...]

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5. Number of Instances - This purchase order includes access to the following instances of the Tesela platform:

☐

(1) National Platform of Spain

☐

(17) Autonomous Platforms. One for each Autonomous Community of Spain

All platforms will be configured as detailed in the purchase order.

(...)

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Third Annex: “FRAMEWORK CONTRACT FOR THE PROVISION OF DIGITAL ADVERTISING SERVICES BETWEEN THE SPANISH WORKERS' SOCIALIST PARTY (PSOE) AND TYRCEO DATA SOLUTIONS”, dated January 31, 2023. It includes the following paragraphs:

“WHEREAS

First. - That TYRCEO is a company that is part of the Taptap Digital SL business group, dedicated to omnichannel advertising and marketing intelligence.

[...]

Third - That TYRCEO is a company of the Taptap Digital, S.L. group, which has proven experience in the technological area of Data Science and Location Intelligence, which has a geospatial intelligence technological tool (TESELA) with which to provide its services and is also authorized to provide the services of activating programmatic advertising campaigns through the SONATA technological platform, owned by its parent company Taptap Digital, S.L.”

Fourth - That, being of interest to PSOE to contract the services of TYRCEO for the activation of programmatic advertising campaigns and communication on digital support through the TESELA and SONATA tools (the "Platforms"), they carry it out through this contract under the following:

CONDITIONS

1. OBJECT

The object of this Framework Contract is to establish the terms and conditions under which TYRCEO will provide the PSOE with the services inherent to its activity that it may request at any given time (hereinafter, the "Services") as a provider of omnichannel digital advertising services for its insertion through the "Platforms" in communication campaigns to be carried out during the year 2023.

The Parties agree that the Services consist of assignments in which the Parties will agree on the specific conditions that each particular Service must adhere to.

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The obligations of both parties and other commitments specific to each assignment, in matters not covered by this framework contract, shall be established in an annex to this contract or service provision order that both parties agree to enter into and which must be formalized subsequently.

In the annex corresponding to each service, the description of the specific Services will be detailed, as well as their duration, deadlines, specific economic conditions, and other circumstances essential for the proper provision of these services.

It is well understood between the Parties that this Framework Contract does not obligate either Party to contract or provide any service other than those provided for in this Contract.

2. THE SERVICES AND THEIR DURATION

This framework contract shall come into effect on the day of its signing and shall remain in effect until the end of 2023. There shall be no tacit extension of this Framework Contract; rather, a new express agreement will be required if applicable. In any case, the duration of each of the different services will be as indicated in each corresponding Annex, remaining in effect for the period stipulated therein, within the general timeframe established in this framework contract.

[...]

10. DECLARATIONS AND WARRANTIES

[...]

That for the execution of this contract, TYRCEO will not have to deliver any database or personal data to the PSOE collected therein, not even anonymized data, being possible the activation of advertising campaigns through the Platforms, upon indication by the PSOE of the content of the campaign and the generic geographical parameters identifying the final recipients of the advertising campaigns.

That, notwithstanding the above, TYRCEO would be responsible for the databases that may eventually be used for the execution of advertising activities, those databases being susceptible to being used for the execution of advertising campaigns and communications to third parties, in accordance with the provisions of the applicable regulations on the protection of personal data.

[...]

That TYRCEO states that the personal data that may eventually be used are stored under its responsibility and have been collected respecting the principles of information and consent provided for in the GDPR.

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That TYRCEO states that the personal data that may eventually be used are stored under its responsibility and have been collected respecting the principles of information and consent provided for in the GDPR."

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Fourth annex:

"CLIENT INSERTION ORDER. MEDIA PLAN: PSOE GENERAL ELECTIONS 2023," dated July 5,

2023.

Records a set of campaigns to be executed by Tyrceo for the PSOE between July 7 and July 21, 2023.
(...)

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Fifth annex:

"CLIENT INSERTION ORDER. MEDIA PLAN: PSOE GENERAL ELECTIONS 2023," dated July 7, 2023.

Records a set of campaigns to be executed by Tyrceo for the PSOE between July 7 and July 21, 2023.

Includes the following:

- "20" video general campaign spot for Sections"
- "Display campaign for ages 18-45 (15 provinces)"
- "Display campaign for ages over 45 (15 provinces)"
- "30" video for ages over 45 (15 provinces)"
- "30" video for the Basque Country"

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Sixth annex:

"CLIENT INSERTION ORDER. MEDIA PLAN: PSOE GENERAL ELECTIONS 2023," dated July 19, 2023.

Records a set of campaigns to be executed by Tyrceo for the PSOE between July 19 and July 21, 2023. Includes the following:

- "Youth video campaign (18-35 years) Custom CUSECs list"
- "Video campaign for ages over 45 in 17 provinces Aggregated CUSEC list for the 17 provinces"
- "Electoral spot urgent version. 15" video. +18 years Custom CUSEC"

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"Reinforcement campaign provinces priority effort (15 provinces)
CUSECS custom."

According to the consultations made, the CUSEC refers to the code used by the INE to identify the census sections.

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Seventh annex:

Corresponds to the result of the filtering and data export carried out during the course of the inspection.

During the present proceedings, the following aspects have been verified (Diligence References):

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The INE publishes aggregated information at the census section level regarding gender, age, education level, marital status, origin, housing tenure, and income level.

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The Ministry of the Interior publishes aggregated information at the polling station level regarding the results of electoral processes.

Additionally, the following information has been recovered regarding the configuration of the electoral roll (Diligence References):

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The Organic Law 5/1985, of June 19, on the General Electoral Regime (LOREG) includes the following in its articles:

"Article thirty-two

1. Registration in the electoral roll is mandatory. In addition to the name and surname, the only data necessary for the identification of the voter at the time of voting, without prejudice to the provisions of Article 85, the number of the National Identity Document will be included among the other census data.

[...]

Article forty-one

1. By royal decree, the personal data of voters necessary for their registration in the electoral roll will be regulated, as well as those of the lists and copies of the electoral roll.
2. Any specific information regarding the personal data contained in the electoral roll is prohibited, except for those requested through judicial means.
3. However, the Electoral Census Office may provide statistical data that does not reveal personal circumstances of the voters.

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4. The autonomous communities may obtain a copy of the electoral roll, in a format suitable for its computer processing, after each electoral call, in addition to the corresponding rectification of it.
5. The representatives of each candidacy may obtain within two days following the proclamation of their candidacy a copy of the electoral roll of the corresponding district, ordered by polling stations, in a format suitable for its computer processing, which may be used exclusively for the purposes provided for in this Law.

Alternatively, the general representatives may obtain under the same conditions a copy of the current electoral roll of the districts where their party, federation, or coalition presents candidacies. Likewise, the Zone Electoral Boards will have a usable copy of the electoral roll corresponding to their scope. The Electoral Boards, by reasoned resolution, may provisionally suspend the delivery of copies of the electoral roll to the aforementioned representatives when the proclamation of their candidacies has been subject to appeal or when it is considered that they may be subject to any of the circumstances provided for in Article 44.4 of this Law.”

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Royal Decree 157/1996, of February 2, which provides for the monthly update of the electoral roll and regulates the data necessary for registration in it, includes the following in its articles:

“Article 2. Necessary data for registration in the electoral roll.

1. Registration in the electoral roll will contain the following data:

Name and surname.

Residence: province and municipality.

Address.

Sex.

Place of birth: province and municipality.

Date of birth: day, month, and year.

Level of education: school certificate or academic qualification.

Number of the national identity document.

2. For Spaniards residing abroad, the registration must contain the data expressed in section 1, except for those relating to the province and municipality of residence, which will instead include those of the country and municipality of current residence, and additionally the following:

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a) Province and municipality of registration in Spain for electoral purposes.

b) Passport number, when the national identity document is not available.

3. For nationals of Member States of the European Union residing in Spain, the data expressed in section 1 will be included, with the exception of the national identity document number, and additionally the following:

a) Foreign identity number.

b) Nationality.

c) Local entity or constituency of the Member State of origin in whose electoral roll they were last registered, in connection with the elections to the European Parliament.

4. For nationals of other States residing in Spain, whose respective countries allow Spaniards to vote in their municipal elections under the terms of a Treaty or Agreement in force, the electoral roll will contain the data expressed in section 1, except for the national identity document number, which will be replaced by the foreign identity number, and will be formed in accordance with the provisions of Royal Decree 202/1995, of February 10."

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Royal Decree 1799/2003, of December 26, which regulates the content of electoral lists and copies of the electoral roll, includes the following in its articles:

"Article 5. Copies of the electoral roll.

1. The copies of the electoral roll provided under the provisions of Article 41, sections 4 and 5, of Organic Law 5/1985, of June 19, will contain the voters ordered in the same manner as in the voting lists, with the exclusions corresponding to the application of Article 6 of this royal decree.

2. The delivery to the representatives of the candidacies of the copy of the roll of residents in Spain and that of the roll of absent voters living abroad will take place between the twenty-eighth and twenty-ninth days following the call.

3. The data of each voter will be as follows:

3.1 Voters residing in Spain (Spaniards and nationals of other States with the right to vote in Spain).

a) Order number.

b) Surnames and first name.

c) Province and municipality of residence.

d) District, section, and polling station.

e) Address.

f) Date of birth: Day, month, and year.

g) Country of nationality, for voters who are nationals of other States.

3.2 Absent voters residing abroad.

a) Order number.

b) Surnames and first name.

c) Province and municipality of registration for electoral purposes.

d) Address.

e) Country of residence.

f) Date of birth: Day, month, and year.

In the case of those voters, residing in Spain or abroad, who in accordance with Article 39.3 of Organic Law 5/1985, of June 19, have opposed inclusion in the copies of the electoral roll provided to the representatives of the candidacies for the purpose of sending electoral propaganda by mail, the information relating to the address will be left blank, and it must be expressly specified that this omission is made in application of the aforementioned article of Organic Law 5/1985, of June 19, of the General Electoral Regime.

The aforementioned requests for exclusion from the copies of the electoral roll will have permanent effect until the voter expresses otherwise."

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The treatment "Electoral Roll," from the Register of personal data treatments of the INE, includes the following:

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Collective: contains the registration of those who meet the requirements to be a voter.

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Data processed:

- For Spaniards: name, surnames, identifier (DNI or passport), date of birth, place of birth, sex, province and municipality of registration, address, and level of education.

- For foreigners: the same as for Spaniards, NIE (if applicable) and nationality. For voters from the

European Union to the European Parliament, the previous constituency in their country of origin is included.

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Recipients:

- ☐ At any time to the Town Halls and Consulates and requests through judicial channels.
- ☐ During the electoral period to Autonomous Communities, representatives of the proclaimed candidacies, electoral boards of the area, polling stations, and to the European Parliament, to the rest of the EU countries (nationals of their states who have expressed the intention to vote in Spain).

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, the Director of the Spanish Data Protection Agency urged the General Subdirectorate of Data Inspection of the AEPD to initiate preliminary investigative actions on July 18, 2023, after becoming aware of information published indicating the possible use by the Spanish Socialist Workers' Party of a technological tool that allows for the identification of specific segments of the population for electoral purposes.

Considering the relevance of the information, and given that the AEP is the supervisory authority in matters of personal data protection, it was deemed necessary to thoroughly understand the described facts, particularly the parameters for determining the consequences that may arise for the rights and freedoms of individuals.

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Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

Within the principles of processing provided in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR.

III

Principles Relating to Processing

Article 5.1.f) "Principles Relating to Processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, according to information published on July 17, 2023, by the newspaper El Confidencial, this political party would have acquired software called TESELA that would allow for the identification of potential voters to carry out a direct mailing of specific propaganda with the intention of provoking their mobilization in the electoral appointment of July 23.

In this regard, Article 28 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector states: "Only individuals and legal entities who are responsible for acts constituting administrative infractions may be sanctioned for such acts, whether through intent or negligence."

IV

Conclusion

From the preliminary investigative actions initiated at the request of the Director of the Spanish Data Protection Agency following the publication in the media of the possible use by the PSOE of software called TESELA to identify individuals fitting a certain profile to subsequently direct specific advertising messages to them through social networks, it is evident that the TESELA software is a system that collects information from various sources that allows it to categorize, at the level of census section or postal code, the following variables: electoral results (municipal, regional, general), demographic characteristics (gender, age range, marital status, income level, origin -native or foreign-, education level, and housing tenure status), topics of interest (housing, employment, culture, environment, and education), profile ("Animal Lovers," "Hunting Enthusiasts," "Gamers," "Fitness," "Motorcyclists," "Preppy").

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Therefore, given that this is a technical matter, it is necessary to indicate the difference between data aggregation and data disaggregation.

It should be noted that data aggregation consists of a data processing that can be performed manually or through specialized software, allowing for the retrieval of search query data in a summarized format, which is significant and useful for the end user.

On the other hand, data disaggregation refers to the separation of information collected from multiple sources to enhance the understanding of a situation, grouping data by age, sex, geographic area, education, ethnicity, or other socioeconomic variables.

Thus, while disaggregated data allows for the identification of each individual based on the collected data, when the information is aggregated instead of disaggregated, it is not possible to individually identify each person.

During the investigation conducted by the AEPD, it could not be established that the Spanish Socialist Workers' Party (PSOE) could access, through the TESELA software, data specifically attributable to identifiable individuals. Therefore, the AEPD considers that the software used by the PSOE for profiling and sending advertising consists of aggregated data processing, such that no information used allows for the individualized identification of persons, and thus there would be no processing of personal data, nor would Article 5.1 f) of the GDPR have been violated by the investigated party.

Therefore, since it has not been possible to attribute responsibility for the processing of personal data in a manner that allows for the individualized identification of each person, as indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to TYRCEO Data Solutions S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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